

2010 03 01

LAKEWOOD CITY COUNCIL MINUTES

Monday, March 1, 2010
City of Lakewood
City Council Chambers
6000 Main Street SW
Lakewood, WA 98499

CALL TO ORDER

Mayor Richardson called the meeting to order at 7:01 p.m.

ROLL CALL

Councilmembers Present: 7 – Mayor Douglas Richardson; Deputy Mayor Don Anderson; Councilmembers Mary Moss, Mike Brandstetter, Jason Whalen, Walter Neary and Claudia Thomas.

FLAG SALUTE

The Pledge of Allegiance was led by Mayor Richardson.

REPORTS BY THE CITY MANAGER

City Manager Neiditz reported that the Legislative Session is nearing its close, and that the transportation budget for the intersections at 150th and Murray is going through at the \$500,000 funding level. The bill to require the election of municipal court judges is dead.

City Manager Neiditz then reported that the Korean business community workshop was held on Friday, February 26, 2010. Twenty people attended the first of two sessions and that the next session is being held this week.

After a lot of discussion about the Lakewood Sister Cities Association, City Manager Neiditz indicated that a meeting has been set with Pierce College and Clover Park Technical College representatives to discuss potential staffing support.

City Manager Neiditz commented that the Colonial Center Request for Proposal is completed and that discussions will be held with the Gramor property owners next week.

With regard to the Pt. Defiance Bypass project, City Manager Neiditz indicated that he had been in communication with the Assistant Director of the Utilities and Transportation Commission regarding the City's desire to pursue the process of reviewing the 100th Street, Steilacoom Boulevard and Bridgeport Way crossings.

Lakewood City Council Minutes

-2-

March 1, 2010

City Manager Neiditz also reported that the City is pursuing options with regard to the employee reduction situation concerning budget reductions and spending.

PROCLAMATIONS AND PRESENTATIONS

Youth Council Report.

Youth Council member Yu reported that the Youth Council will be participating in the Parks Appreciation Day and Kids Fish-In events. She then reported on the activities at each high school.

Proclamation declaring March 8-12, 2010 as Classified School Employees Week.

Councilmember Moss presented a proclamation declaring March 8-12, 2010 as Classified School Employees Week to Ms. Irene Oda, President of the Educational Support Professionals of Clover Park.

Clover Park School District Board Report.

Clover Park School District (CPSD) Board Director Joe Vlaming thanked the Mayor for his efforts on the passage of the CPSD bond which received a 62 percent affirmative vote. He then reviewed the proposed schedule for the use of the bond funds and improvements for the affected school facilities. He then provided an update on the construction improvements at Lakes High School.

PUBLIC COMMENTS

Speaking before the Council were:

Dennis Haugen, Lakewood resident, spoke about property the City acquired and that he was not able to find if the fuel tanks at that property were removed. He then indicated he would be sending the Council historic emails on how staff treated the tire businessman who spoke before the Council earlier. He then indicated that the City Attorney and a quality control person should be working for the Council directly.

Ken Severe, Lakewood resident, thanked the Council for placing the vouchers on the City's website and requested that the vouchers be formatted to be more user-friendly. He then spoke about six airline tickets being charged against a credit card. He then indicated that the credit card policy is not clear about credit card limits and who approves the expenditures.

Becky Huber, Lakewood resident, distributed copies of Lakewood's history book authored by Steve Dunkelberger and Councilmember Neary. She thanked the Council for the lodging tax funds for the museum. She announced that the next Lakewood Historical Society meeting is on March 23, 2010 at the Lakewood Library. She then reviewed upcoming fundraising events of the Society.

Lakewood City Council Minutes -3- March 1, 2010

C O N S E N T A G E N D A

- A. Approval of the minutes of the City Council meeting of February 15, 2010.

- B. Approval of the minutes of the City Council Study Session of February 22, 2010.

- C. Approval of payroll check numbers 215, 111882 to 111905, and direct deposit check numbers 38854 to 39109, in the amount of \$874,179.27, for the period February 1 – 15, 2010.

- D. Approval of claim voucher numbers 55209 to 55291, in the amount of \$279,537.43, for the period ending February 18, 2010.

- E. Approval of claim voucher numbers 55292 to 55491 and 900183 to 900185, in the amount of \$581,810.83, for the period ending February 25, 2010.

- F. Items Filed in the Office of the City Clerk:
 - 1. Planning Advisory Board meeting minutes of January 27, 2010.
 - 2. Parks and Recreation Advisory Board meeting minutes of January 26, 2010.

3. Lakewood Sister Cities Association General Membership meeting minutes of February 19, 2009, September 17, 2009 and January 20, 2010.

COUNCILMEMBER THOMAS MOVED TO ADOPT THE CONSENT AGENDA AS PRESENTED. SECONDED BY COUNCILMEMBER neary. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

* * * * *

Mayor Richardson noted a scrivener error on page 3, third paragraph of the February 22, 2010 Council minutes that the word "Paying" should read "Pain."

* * * * *

R E G U L A R A G E N D A

ORDINANCES

Ordinance No. 511 amending Sections 10.28.010, 10.28.040 and 10.28.050 of the Lakewood Municipal Code relative to impoundment of vehicles driven by drivers with suspended licenses.

deputy mayor anderson MOVED TO ADOPT ORDINANCE NO. 511. SECONDED BY COUNCILMEMBER neary.

Lakewood City Council Minutes

-4-

March 1, 2010

COUNCILMEMBER BRANDSTETTER MOVED TO DELETE SECTION 10.28.010 B OF ORDINANCE NO. 511. DUE TO THE LACK OF A SECOND, THE MOTION DIED.

VOICE VOTE WAS TAKEN ON THE MAIN MOTION AND CARRIED UNANIMOUSLY.

UNFINISHED BUSINESS

None.

NEW BUSINESS

Motion No. 2010-10 authorizing the execution of Addendum No. 1 to the agreement with Exeltech, Inc., in an amount not to exceed \$171,796.59, for professional engineering and construction management services for the construction of three phases of the American Lake Gardens / Tillicum Sanitary Sewer Extension Project.

COUNCILMEMBER thomas MOVED TO AUTHORIZE THE EXECUTION OF ADDENDUM NO. 1 TO THE AGREEMENT WITH EXELTECH, INC.K IN AN AMOUNT NOT TO EXCEED \$171,796.59, FOR PROFESSIONAL ENGINEERING AND CONSTRUCTION MANAGEMENT SERVICES FOR THE CONSTRUCTION OF THREE PHASES OF THE AMERICAN LAKE GARDENS/TILlicum SANITARY SEWER EXTENSION PROJECT. SECONDED BY COUNCILMEMBER whalen. VOICE VOTE WAS TAKEN AND CARRIED UNANIMOUSLY.

BRIEFING BY THE CITY MANAGER

City Manager Neiditz indicated that the public hearing of the Utilities and Transportation Commission about the Pt. Defiance Bypass could be held in Lakewood.

City Manager Neiditz then announced that next week's Council Study Session will be a joint meeting with the Lakewood Fire Commissioners and that it will be held at the Police Station.

CITY COUNCIL COMMENTS

Councilmember Neary indicated that he will be attending next week's Clover Park School District Board meeting and that he will be providing the Council's report.

Councilmember Moss announced that the Black Tie & Blue Jean event is this Saturday, March 6, 2010. She then announced that, on March 24, 2010, Communities In Schools will be holding their fundraiser at the Old Country Buffet.

Lakewood City Council Minutes

-5-

March 1, 2010

Councilmember Moss indicated that on Mondays, Wednesdays and Fridays this month the Tillicum Community Center will be holding census reviews.

Councilmember Brandstetter commented on the Korean business community workshop he attended about building permits. He noted that a lot of work was put in by City staff in the presentation and the materials.

Mayor Richardson announced that Council will recess for five minutes. Council recessed at 7:55 p.m. and reconvened at 8:00 p.m.

EXECUTIVE SESSION

Mayor Richardson announced that the Council will recess into Executive Session for approximately 30 minutes to discuss the performance of a public official.

* * * * *

Council recessed into Executive Session at 8:00 p.m. and reconvened at 8:30 p.m.

At 8:30 p.m. Mayor Richardson announced that Executive Session will be extended an additional 10 minutes. At 8:40 p.m. Mayor Richardson announced that Executive Session will be extended an additional 10 minutes. The Council reconvened at 8:50 p.m.

ADJOURNMENT

There being no further business, the meeting adjourned at 8:50 p.m.

DOUGLAS G. RICHARDSON, MAYOR

ATTEST:

ALICE M. BUSH, MMC

CITY CLERK